

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

Date Purchased:

SUMMONS

-----X
JESUS TAJADA,

Plaintiff(s),

-against-

NEW YORK CITY POLICE DEPARTMENT, P.O.
MITCHELL, P.O. JOHN DOES and THE CITY OF NEW
YORK,

Defendant(s).
-----X

Plaintiff designates NEW
YORK County as the place
of trial.

The basis of venue is:
location of occurrence
I/F/O the premise known as
674 West 161st Street
County of New York, City
and State of New York

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York
October 11, 2018



SAMEER CHOPRA
CHOPRA & NOCERINO, LLP
Attorneys for Plaintiff

JESUS TAJADA
100 Quentin Roosevelt Blvd, Suite 107
Garden City, New York 11530

Defendant's Address

THE CITY OF NEW YORK
100 CHURCH STREET
YORK, NEW YORK

NEW YORK CITY POLICE DEPARTMENT
1 POLICE PLAZA
NEW YORK, NEW YORK

P.O. MITCHELL & P.O. JOHN DOES
c/o NEW YORK CITY POLICE DEPARTMENT NEW
1 POLICE PLAZA
NEW YORK, NEW YORK

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

**VERIFIED
COMPLAINT**

-----X
JESUS TAJADA,

Index No.:
Date Purchased:

Plaintiff(s),

-against-

NEW YORK CITY POLICE DEPARTMENT, P.O.
MITCHELL, P.O. JOHN DOES and THE CITY OF NEW
YORK,

Defendant(s).

-----X

The plaintiff, **JESUS TAJADA**, by his attorneys, CHOPRA & NOCERINO, LLP,
complaining of the defendants herein, respectfully shows to this Court and alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That the plaintiff, **JESUS TAJADA**, is a resident of the County of the New York,
City and State of New York.
2. That at all of the times hereinafter mentioned, and upon information and belief,
the defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly organized
and existing under and by virtue of the Laws of the City and State of New York.
3. That at all of the times hereinafter mentioned, and upon information and belief,
the defendant, **NEW YORK CITY POLICE DEPARTMENT**, was a public agency duly
constituted and existing under and by virtue of the Laws of the City and State of New York.
4. That on or about June 4, 2018, a Notice of Claim was served on the defendants,

THE CITY OF NEW YORK and **NEW YORK CITY POLICE DEPARTMENT**, prior to the commencement of this action.

5. That on or about June 4, 2018, the plaintiff herein duly presented in writing to the defendants, **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, the claims for damages herein set forth and upon which this action is, in part, founded and that said claim was presented for adjustment.

6. That more than 30 days have elapsed since the said Notice of Claim, dated May 25, 2018, was served upon the defendant and the defendants, **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, has failed and refused to make payment or make an adjustment of any claims herein set forth.

7. That the plaintiff has duly complied with all of the conditions precedent to the commencement of this action as required by New York General Municipal Law §50(h).

8. That this action was commenced within one (1) year after the accrual of the causes of action herein.

9. Defendant **P.O. MITCHELL** was a police officer/detective employed by the New York City Police Department and attached to the NYPD Precinct.

10. Plaintiff sues defendant **P.O. MITCHELL** in both his individual and official capacity.

11. That at all times material to this Complaint, the defendant, **P.O. MITCHELL**, acted within the scope of his duties as an employee, agent and official of the defendants, **CITY OF NEW YORK** and the **NEW YORK CITY POLICE DEPARTMENT**.

12. That at all times hereinafter mentioned, the defendants, **THE CITY OF NEW**

YORK and **NEW YORK CITY POLICE DEPARTMENT**, employed various persons including the police officers, law enforcement agents and personnel mentioned in this Complaint.

13. That on or about April 24,2018, the plaintiff, **JESUS TAJADA**, was injured by the defendants, by their agents, servants and/or employees.

14. That the aforesaid incident was without probable cause or any justification.

15. That as a result of the defendants' negligence, the plaintiff suffered and sustained physical injury and bodily harm, plaintiff's health was impaired, plaintiff suffered severe emotional distress, plaintiff's reputation and character were injured and plaintiff suffered a loss of income.

16. That by reason of the foregoing, the plaintiff, **JESUS TAJADA**, has been unable to attend to his usual occupation and/or school in the manner required.

17. That one or more of the exceptions of §1602 of the Civil Practice Law and Rules do apply to the within action.

18. That as a result of the foregoing, the plaintiff, **JESUS TAJADA**, sustained damages in excess of the jurisdictional amounts of the lower court.

AS AND FOR A SECOND CAUSE OF ACTION

19. Plaintiffs repeat and realleges each and every allegation contained in paragraphs 1 through 18 inclusive, with the same force and effect as though more fully set forth at length herein.

20. That at the times of the above-stated incident and at all times hereinafter mentioned, plaintiff, **JESUS TAJADA**, was unlawfully assaulted and battered.

21. That at the time of said incident, assault and battery, the defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by the defendants **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**.

22. That by reason of and in consequence of said assault and battery on the part of the defendants and their agents, servants and/or employees, the plaintiff, **JESUS TAJADA**, sustained serious bodily injuries with accompanying conscious pain and suffering and was rendered sick, sore, lame, disabled, and bruised, and sustained severe mental distress that some of the said injuries may be permanent; that she was physically and verbally assaulted and battered at the time of her attack, and that she was unlawfully deprived of her liberty, rights and freedom.

23. That by reason of the foregoing, the plaintiff, **JESUS TAJADA**, has been unable to attend to his usual occupation and/or school in the manner required.

24. That one or more of the exceptions of §1602 of the Civil Practice Law and Rules do apply to the within action.

25. That as a result of the foregoing, the plaintiff, **JESUS TAJADA**, sustained damages in excess of the jurisdictional amounts of the lower court.

AS AND FOR A THIRD CAUSE OF ACTION

26. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 25 inclusive, with the same force and effect as though more fully set forth at length herein.

27. That as a result of the defendants' concerted and unlawful use of excessive force

and assault and battery of plaintiff, **JESUS TAJADA**, the plaintiff was deprived of his liberty without due process of law in violation of her rights under the Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of her statutory rights under 42 U.S.C. §1983; and the plaintiff was further deprived of her right to due process under the Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of her statutory rights under 42 U.S.C. §1983 by the defendant's use of excessive physical force.

28. That the defendants' violations of plaintiff's constitutional and civil rights and concerted, unlawful use of excessive force, assault and battery of plaintiff, **JESUS TAJADA**, was perpetrated by the defendants pursuant to and under color of law.

29. That the aforementioned acts, omissions and conduct of the defendants, set forth above in paragraphs above, resulted in the plaintiff suffering physical injury, impairment of health, severe emotional distress, impairment of reputation and character, loss of income, deprivations and violations of her Fourth, Fifth and Fourteenth Amendment rights as well as rights secured and guaranteed by 42 U.S.C. §1983 and the laws of the United States.

30. That by reason of the foregoing, the plaintiff, **JESUS TAJADA**, has been unable to attend to his usual occupation and/or school in the manner required.

31. That one or more of the exceptions of §1602 of the Civil Practice Law and Rules do apply to the within action.

32. That as a result of the foregoing, the plaintiff, **JESUS TAJADA**, sustained damages in excess of the jurisdictional amounts of the lower court.

AS AND FOR A FOURTH CAUSE OF ACTION

33. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 32 inclusive, with the same force and effect as though more fully set forth at length herein.

34. That the defendants were negligent, reckless and failed to use reasonable care during the aforesaid incident.

35. That as a result of the negligence of the defendants, the plaintiff, **JESUS TAJADA**, sustained serious bodily injuries and accompanying conscious pain and suffering, and was rendered sick, sore, lame, disabled and bruised, suffered emotional distress and mental anguish and was caused to undergo medical care and treatment and incur medical expenses and other costs.

36. That by reason of the foregoing, the plaintiff, **JESUS TAJADA**, has been unable to attend to his usual occupation and/or school in the manner required.

37. That one or more of the exceptions of §1602 of the Civil Practice Law and Rules do apply to the within action.

38. That as a result of the foregoing, the plaintiff, **JESUS TAJADA**, sustained damages in excess of the jurisdictional amounts of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION

39. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 38 inclusive, with the same force and effect as though more fully set forth at length herein.

40. That at the time of said assault, the agent, servant and/or employee was acting in the course and general scope of his employment in pursuance of the authority given him by the defendant **NEW YORK CITY POLICE DEPARTMENT**.

41. That upon information and belief, the defendant, **NEW YORK CITY POLICE DEPARTMENT** herein knew, or should have known, that the agent, servant and/or employee was unfit for the employment for which he was hired.

42. That by hiring and retaining the aforesaid agent, servant and/or employee, the defendant **P.O. MITCHELL** herein created and propitiated and situation where it was likely that said agent, servant and/or employee would, as a result of his history, character, temperament and propensity, threaten, assault and strike others.

43. That the defendant, **NEW YORK CITY POLICE DEPARTMENT** knew or should have known in the exercise of due and reasonable care that the aforesaid agent, servant and/or employee was vicious and potentially dangerous.

44. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, was negligent in the hiring of defendant **P.O. MITCHELL** and supervision of the aforesaid agent, servant and/or employee.

45. That as a result of the negligence of the defendants, the plaintiff, **JESUS TAJADA**, sustained serious bodily injuries and accompanying conscious pain and suffering, and was rendered sick, sore, lame, disabled and bruised, suffered emotional distress and mental anguish and was caused to undergo medical care and treatment and incur medical expenses and other costs.

46. That by reason of the foregoing, the plaintiff, **JESUS TAJADA**, has been

unable to attend to his usual occupation and/or school in the manner required.

47. That one or more of the exceptions of §1602 of the Civil Practice Law and Rules do apply to the within action.

48. That as a result of the foregoing, the plaintiff, **JESUS TAJADA**, sustained damages in excess of the jurisdictional amounts of the lower court.

AS AND FOR A SIXTH CAUSE OF ACTION

49. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 48 inclusive, with the same force and effect as though more fully set forth at length herein.

50. That on or about October 5, 2015 at approximately 9:30 AM, in front of the premise known as Liberty Avenue, in the County of Queens, State of New York, defendant **P.O. MITCHELL** assaulted, battered, beat, threatened, menaced, attacked, thrashed, punched, head butted, shoved, hit, scratched, elbowed and pushed plaintiff, **JESUS TAJADA**, thereby causing him to sustain severe and permanent injuries.

51. That the aforesaid conduct by defendant **P.O. MITCHELL** was without the consent of the plaintiff, **JESUS TAJADA**.

52. That the aforesaid conduct by defendant **P.O. MITCHELL** was offensive in nature.

53. That the aforesaid conduct by defendant **P.O. MITCHELL** was intentional.

54. That the aforesaid conduct by defendant **P.O. MITCHELL** was with the intent of causing physical, emotional and/or psychological harm and/or injury to the plaintiff, **JESUS TAJADA**.

55. That the aforesaid conduct by the defendant **P.O. MITCHELL** placed the plaintiff, **JESUS TAJADA**, in imminent apprehension of harmful contact.

56. That as a result of the aforesaid conduct, plaintiff **JESUS TAJADA** was rendered sick, sore lame and disabled; sustained severe and painful personal injuries; sustained severe nervous shock, mental anguish, severe emotional distress and great physical pain; was confined to bed and home for a long period of time; was compelled to undergo hospital and medical aid, dental aid, treatment and attention; has suffered loss of enjoyment of life; was prevented from engaging in his usual occupation for a long period of time; and since some of his injuries are of a permanent nature, he will continue to suffer similar damages in the future.

57. That the aforesaid occurrence and resulting injuries to plaintiff **JESUS TAJADA** was due to the willful, wanton, intentional, reckless and/or malicious conduct of the defendant, **P.O. MITCHELL**.

58. That the aforesaid occurrence and resulting injuries to plaintiff **JESUS TAJADA** due to the conduct of defendant **P.O. MITCHELL** reflects utter indifference to the safety of others and specifically the safety of plaintiff **JESUS TAJADA** on the part of defendant **P.O. MITCHELL**.

59. That the aforesaid occurrence and resulting injuries to plaintiff **JESUS TAJADA** due to the conduct of defendant **P.O. MITCHELL** reflects a conscious disregard of the safety of others and specifically the safety of plaintiff **JESUS TAJADA** on the part of defendant **P.O. MITCHELL**.

60. That the aforesaid occurrence and resulting injuries to plaintiff **JESUS**

TAJADA due to the conduct of defendant **P.O. MITCHELL** reflects a reckless disregard for human life and safety and specifically the life and safety of plaintiff **JESUS TAJADA** on the part of defendant **P.O. MITCHELL**.

61. That by reason of the foregoing, plaintiff demands damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction herein. Plaintiff further demands punitive and exemplary damages to punish said defendant for his egregious and outrageous conduct, and to discourage others similarly situated from perpetrating like or similar acts of intentional, willful, wanton and reckless conduct; the amount of punitive and exemplary damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction herein.

AS AND FOR A SEVENTH CAUSE OF ACTION

62. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 61 inclusive, with the same force and effect as though more fully set forth at length herein.

63. That on or about April 24, 2018 at approximately 1:00 p.m., in front of the premise known as 674 West 161st Street, in the County of New York, City and State of New York, defendant **P.O.'s "JOHN DOES"** failed to stop, restrain, confine, detain, jail, imprison or arrest **P.O. MITCHELL** for assaulting, battering, beating, threatening, menacing, attacking, thrashing, punching, head butting, shoving, hitting, scratching, elbowing and pushing plaintiff, **JESUS TAJADA**, thereby causing him to sustain severe and permanent injuries.

64. That on or about April 24, 2018 at approximately 1:00 p.m., in front of the premise known as 674 West 161st Street, in the County of New York, City and State of New York, defendant **P.O. "JOHN DOE's"** failed to stop, prevent and/or interfere with **P.O. MITCHELL** from assaulting, battering, beating, threatening, menacing, attacking, thrashing, punching, head butting, shoving, hitting, scratching, elbowing and pushing plaintiff, **JESUS TAJADA**, thereby causing him to sustain severe and permanent injuries.

65. That the aforesaid presence and conduct by the defendant **P.O. "JOHN DOES"** placed the plaintiff, **JESUS TAJADA**, in imminent apprehension of harmful contact.

66. That as a result of the aforesaid conduct or lack thereof, plaintiff **JESUS TAJADA** was rendered sick, sore lame and disabled; sustained severe and painful personal injuries; sustained severe nervous shock, mental anguish, severe emotional distress and great physical pain; was confined to bed and home for a long period of time; was compelled to undergo hospital and medical aid, dental aid, treatment and attention; has suffered loss of enjoyment of life; was prevented from engaging in his usual occupation for a long period of time; and since some of his injuries are of a permanent nature, he will continue to suffer similar damages in the future.

AS AND FOR AN EIGHT CAUSE OF ACTION

67. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 66 inclusive, with the same force and effect as though more fully set forth at length herein.

68. On April 24, 2018, and at all times mentioned the sidewalk and roadway in front of the premise 674 West 161st Street were public in nature in the County of New York, City and State of New York.

69. On April 24, 2018, while Plaintiff was lawfully present in the aforesaid location, he was caused to be negligently, carelessly, recklessly, intentionally, wrongfully, willfully, maliciously and with gross negligence, physically detained, assaulted, wrongfully imprisoned, falsely arrested and detained by defendants **CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and P.O. "MITCHELL and JOHN DOES**, and was caused to sustain severe and permanent injuries.

70. The aforementioned occurrence took place due to the negligence, carelessness and recklessness of the defendants, their agents, servants, employees and/or licensees, acting within the scope of their authority, within the scope of their employment and in the furtherance of their agency.

71. The aforesaid occurrence and the results thereof were due to and caused by the joint, several and concurrent negligence of the defendants and their agents, servants, employees and/or licensees in negligently, carelessly and recklessly causing, allowing and/or permitting the Plaintiff to be willfully, maliciously and with gross negligence physically detained, assaulted, wrongfully imprisoned, falsely arrested and detained.

72. No negligence on the part of the Plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

73. That by reason of the foregoing, plaintiff **JESUS TAJADA** was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and

their effects will be permanent; as a result of said injuries Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and as a result Plaintiff was and will continue to be rendered unable to perform her normal activities and duties and in consequence has sustained a loss therefrom.

74. That as a result of the foregoing, Plaintiff **JESUS TAJADA** was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION

75. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 74 inclusive, with the same force and effect as though more fully set forth at length herein.

76. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the defendants and their agents, servants, employees and/or licensees, all of whom were acting within the scope of their authority, within the scope of and in furtherance of their employment and in furtherance of their agency.

77. The acts complained of herein constitute intentional infliction of emotional harm and distress.

78. That by reason of the foregoing, plaintiff **JESUS TAJADA** was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result,

plaintiff was and will continue to be rendered unable to perform her normal activities and duties and in consequence has sustained a loss therefrom.

79. That as a result of the foregoing, Plaintiff **JESUS TAJADA** was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A TENTH CAUSE OF ACTION

80. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 79 inclusive, with the same force and effect as though more fully set forth at length herein.

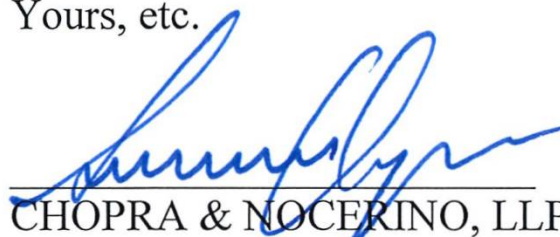
81. The acts complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society.

82. That as a result of the foregoing, Plaintiff **JESUS TAJADA** was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction herein. Plaintiff further demands punitive and exemplary damages to punish said defendant for his egregious and outrageous conduct, and to discourage others similarly situated from perpetrating like or similar acts of intentional, willful, wanton and reckless conduct; the amount of punitive and exemplary damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction herein.

Dated: Garden City, New York
October 11, 2018

Yours, etc.



CHOPRA & NOCERINO, LLP

Attorneys for Plaintiff

JESUS TAJADA

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(212)868-3600

TO: CITY OF NEW YORK & NEW YORK CITY
POLICE DEPARTMENT & P.O. MITCHELL
and P.O. JOHN DOES
100 Church Street
New York, New York 10007

STATE OF NEW YORK)
) ss
COUNTY OF NASSAU)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for the plaintiff(s) in the within action; I have read the foregoing **SUMMONS AND COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client(s), is that my client(s) are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: Garden City, New York
October 11, 2018


SAMEER CHOPRA

Index No.

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Defendant(s).

SUMMONS AND COMPLAINT

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